

24SMCV04543 24SMCV04543

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TENTATIVE RULING

August 18, 2026

24SMCV04543 (Austin v. Alo LLC, et. al.)

RELEVANT BACKGROUND

On September 19, 2024, plaintiff Jamon Hicks (Plaintiff) filed his complaint against defendants Alo, LLC (Alo) and Adam Dane (Dane) (collectively, Defendants).

On March 20, 2026, at the case management conference, the Court ordered as follows: "The Court, pursuant to an oral request made by Plaintiff, orders Adam Dane in Complaint filed by JAMON HICKS on 09/19/2024 dismissed Without Prejudice." (3/20/26 Minute Order.)

INSTANT MOTION

On May 6, 2026, Plaintiff filed the instant motion for relief from order of dismissal pursuant to Code of Civil Procedure section 473, subdivision (b). Alo filed an opposition, and Plaintiff filed a reply.

DISCUSSION

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from

a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect..." (Code Civ. Proc., § 473, subd. (b)). "Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise or neglect, vacate any resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise or neglect." (Id.)

Here, Plaintiff seeks relief from the Order of Dismissal of Dane, which resulted from attorney's mistake, inadvertence, surprise, and/or excusable neglect. Plaintiff has provided a declaration from counsel, Jeremy E. Galloway. (See Galloway Decl.)

Plaintiff asserts that, at the March 20, 2026, Case Management Conference, Mr. Galloway appeared on the matter on behalf of the assigned attorney due to a scheduling conflict. Mr. Galloway was prepared to update the court regarding mediation, status of discovery, and to request a trial date. Mr. Galloway was not anticipating any discussion on dismissal of Dane. Attorney Jenna W. Logoluso, appeared as Counsel for Alo. LLC. At the hearing, Ms. Logoluso made supplemental comments to provide more information to the Court regarding the status of the case and hopes of resolution. In light of those updates, Ms. Logoluso additionally requested the Court dismiss defendant Dane. Without request for response from Mr. Galloway, the Court granted the request and dismissed Dane without prejudice. Mr. Galloway was unaware at the time of the impact of this request being granted, and it was an error that he did not voice his opposition to the dismissal.

In opposition, Alo argues that "[t]he dismissal was the foreseeable result of a prolonged pattern of litigation neglect spanning nearly eighteen months." (Opp at. p. 2:6-7.) But Alo does not contest in its opposition that it was Alo's counsel who requested the dismissal, not plaintiff's counsel.

The Court's March 20, 2026 Minute Order states that defendant Adam Dane was dismissed at the request of plaintiff's counsel. (3/20/26 Minute Order ["The Court, pursuant to an oral request made by

Plaintiff, orders Adam Dane in Complaint filed by JAMON HICKS on 09/19/2024 dismissed Without Prejudice."].)

The Court did not intend to dismiss defendant Dane at the request of a co-defendant's counsel and believes that the Court misunderstood whose counsel had made the request.

Accordingly,

Plaintiff's motion for relief is GRANTED.